

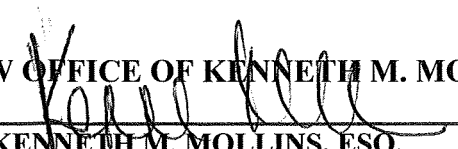
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
KHARI SCARBOROUGH,

Plaintiff,

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER PIMENTEL,
NEW YORK CITY POLICE OFFICER OLIVEIRA,
NEW YORK CITY POLICE OFFICER CLARKE and
NEW YORK CITY POLICE OFFICERS"JOHN DOES 1-5" true names being unknown at this time,
Defendants.Index No.:
Date Purchased:
Plaintiff designate
NEW YORK COUNTY
as Place of Trial
Basis of Venue:
Plaintiff's Address
SUMMONS
Plaintiff Resides at:
Edgecombe Avenue
New York, N.Y. 10032-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after service is complete if the Summons is not personally delivered to you in the State of New York); in the case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Hauppauge, New York
August 27, 2024
LAW OFFICE OF KENNETH M. MOLLINS,**By: KENNETH M. MOLLINS, ESQ.**

Attorneys for Plaintiff

KHARI SCARBOROUGH1393 Veterans Memorial Highway -Suite 101S
Hauppauge, New York 11788
(631) 608-4100

Defendants' Addresses**CITY OF NEW YORK****Office of Comptroller****1 Centre Street****Room 1200****New York, NY 10007****NEW YORK CITY POLICE DEPARTMENT****Office of Comptroller****1 Centre Street****Room 1200****New York, N Y 10007****NEW YORK CITY POLICE OFFICER PIMENTEL****c/o Office of Comptroller****1 Centre Street****Room 1200****New York, N Y 10007****NEW YORK CITY POLICE OFFICER OLIVEIRA****c/o Office of Comptroller****1 Centre Street****Room 1200****New York, N Y 10007****NEW YORK CITY POLICE OFFICER CLARKE****c/o Office of Comptroller****1 Centre Street****Room 1200****New York, N Y 10007****NYC POLICE OFFICERS "JOHN DOES 1-5"****true names being unknown****Office of Comptroller****1 Centre Street****Room 1200****New York, NY 10007**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KHARI SCARBOROUGH,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER PIMENTEL,
NEW YORK CITY POLICE OFFICER OLIVEIRA,
NEW YORK CITY POLICE OFFICER CLARKE and
NEW YORK CITY POLICE OFFICERS
“JOHN DOES 1-5” true names being unknown at this time,

Defendants.
-----X

Plaintiff, KHARI SCARBOROUGH, by his attorneys, LAW OFFICE OF KENNETH M.
MOLLINS, P.C., complaining of the Defendants herein, respectfully sets forth and alleges as
follows, upon information and belief:

PARTIES

1. At all times mentioned herein, Plaintiff, KHARI SCARBOROUGH, was and still
is a resident of the County of New York.

2. That at all times mentioned herein, Defendant, CITY OF NEW YORK, is a
municipality, duly organized and existing under and by virtue of the laws of the State of New
York, with principal offices located at 1 Centre Street, New York, New York.

3. That all times mentioned herein, Defendant, NEW YORK CITY POLICE
DEPARTMENT, is a municipality, duly organized and existing under and by virtue of the laws
of the State of New York, with principal offices located at 1 Centre Street, New York, New
York.

4. That at all times mentioned herein, Defendant, NEW YORK CITY POLICE OFFICER PIMENTEL, was an agent and/or employee of the NEW YORK CITY POLICE DEPARTMENT and/or the NYPD 40th PRECINCT, which is a municipality, duly organized and existing under and by virtue of the law of the State of New York, with principal offices located 1 Centre Street, Room 1225, New York 10007.

5. That at all times mentioned herein, Defendant, NEW YORK CITY POLICE OFFICER OLIVEIRA, was an agent and/or employee of the NEW YORK CITY POLICE DEPARTMENT and/or the NYPD 40th PRECINCT, which is a municipality, duly organized and existing under and by virtue of the law of the State of New York, with principal offices located 1 Centre Street, Room 1225, New York 10007.

6. That at all times mentioned herein, Defendant, NEW YORK CITY POLICE OFFICER CLARKE, was an agent and/or employee of the NEW YORK CITY POLICE DEPARTMENT and/or the NYPD 40th PRECINCT, which is a municipality, duly organized and existing under and by virtue of the law of the State of New York, with principal offices located 1 Centre Street, Room 1225, New York 10007.

7. That at all times mentioned herein, Defendant NYC POLICE OFFICERS "JOHN DOES 1-5, true names being unknown at this time, were agents and/or employees of the NEW YORK CITY POLICE DEPARTMENT and/or the NYPD 40th PRECINCT, which is a municipality, duly organized and existing under and by virtue of the law of the State of New York, with principal offices located 1 Centre Street, Room 1225, New York 10007.

NOTICE OF CLAIM

8. On or about the 5th day of April 2025, Plaintiff prepared and duly served a Notice of Claim upon the Defendants.

9. The Notice of Claim was duly served upon the Defendants within ninety (90) days after the injuries and damages hereinafter described were received and/or sustained and/or discovered by the Plaintiff and was served prior to the commencement of this action.

10. More than thirty (30) days have elapsed since the service of said Notice of Claim as aforesaid, and the claim remains unpaid, and the Defendants have failed and refused to make any adjustments to the same.

11. Plaintiff has duly complied with all the conditions necessary for the commencement of this action and has complied with all the provisions of the Laws and Statutes of the City and State of New York in relation thereto.

12. This action was commenced within one (1) year and ninety (90) days from the date that said cause of action accrued and/or was discovered under CPLR §208.

AS AND FOR A FIRST CAUSE OF ACTION

13. On February 26, 2024, an argument ensued between Plaintiff and his then girlfriend.

14. At that time, Plaintiff decided to pack up all his belongings and leave the apartment.

15. The Plaintiff started to leave, the argument continued and Plaintiff's then girlfriend started to break his belongings and falsely claimed that some of his property belonged to her.

16. At approximately 11:30 am on February 26, 2024, the Plaintiff called 911 for a police officer to come and assist him in safely removing the rest of his belongings from the apartment.

17. Prior to the arrival of Defendants, NEW YORK CITY POLICE OFFICER PIMENTEL, NEW YORK CITY POLICE OFFICER OLIVEIRA, NEW YORK CITY POLICE OFFICER CLARKE and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-5", true names being unknown at this time, all of which will be referred to hereinafter as "NEW YORK CITY POLICE OFFICERS" or "Defendants".

18. The Plaintiff managed to get most of his belongings out of the apartment and into the hallway.

19. The Defendants, NEW YORK CITY POLICE OFFICERS arrived at the subject apartment at approximately 12:00 pm and instead of speaking with the Plaintiff who contacted them for help, they went into the apartment and spoke with his then girlfriend while Plaintiff was gathering his belongings in the hallway.

20. The Plaintiff asked Defendant NEW YORK CITY POLICE OFFICERS to assist him in retrieving one last item of his that was left in the apartment, which was a bottle that belonged to his grandmother.

21. Shortly thereafter, Defendant NEW YORK CITY POLICE OFFICERS ordered Plaintiff to come inside the apartment after noticing a replica of a toy gun within the apartment.

22. Defendant, NEW YORK CITY POLICE OFFICERS, engaged in assault when they falsely arrested, unlawfully detained, unlawfully searched and seized, and wrongfully handcuffed the Plaintiff.

23. The Plaintiff asked the NEW YORK CITY POLICE OFFICERS why he was being arrested but was given no answers.

24. At this time, multiple NEW YORK CITY POLICE OFFICERS arrived at the apartment including POLICE OFFICER PIMENTEL, POLICE OFFICER OLIVEIRA and POLICE OFFICER CLARKE.

25. At this time, Plaintiff was very concerned about one of his bookbags left unattended in the hallway which contained, inter alia, a large sum of cash (i.e., approximately \$5,000.00) which he obtained from a lawsuit against the State of New York regarding a bail settlement and asked his ex-girlfriend to retrieve his bag.

26. The Defendant NEW YORK CITY POLICE OFFICERS overheard Plaintiff telling his then girlfriend about his bookbag containing a large amount of cash.

27. Plaintiff observed NEW YORK CITY POLICE OFFICERS unlawfully search the subject bookbag and observed POLICE OFFICER PIMENTAL unlawfully remove the envelope containing the \$5,000.00 cash and his tax receipts from the bookbag.

28. Thereafter, on a later date, Plaintiff made a complaint to the Defendants' precinct about the money the police officers stole from him on the date in question.

29. After being wrongfully arrested and unlawfully detained for approximately 1 hour, the arresting officers NEW YORK CITY POLICE OFFICER OLIVEIRA and NEW YORK CITY POLICE OFFICER CLARKE brought Plaintiff downstairs and placed him in a New York City Police Department squad car.

30. The Plaintiff was then taken to New York City Police Department 7th Precinct where he was unlawfully detained, falsely imprisoned, unlawfully searched, falsely arrested, and

wrongfully processed.

31. The Plaintiff was not told what he was being arrested for or charged with despite his requests.

32. The Plaintiff was falsely arrested, falsely imprisoned and wrongfully detained in a holding cell in the 7th Precinct from approximately 12:00 pm until approximately 7:00 pm when he was released and issued a Desk Appearance Ticket for an appearance in the Bronx County Criminal Court on or about March 17, 2024.

33. On March 17, 2024, Plaintiff appeared at the Bronx County Criminal Court and spoke with the Clerk's Office when they informed him that the charges against him were dismissed.

AS AND FOR A SECOND CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "33" inclusive of this Complaint, as if the same were set forth at length herein.

34. The bodily injury, psychological and emotional injuries sustained by the Plaintiff were caused directly by the Defendants.

35. As a result of the aforementioned negligence, careless and recklessness of the Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER PIMENTEL, NEW YORK CITY POLICE OFFICER OLIVEIRA, NEW YORK CITY POLICE OFFICER CLARKE and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-5" true names being unknown at this time, its agents, servants and/or employees, the physical injuries and emotional distress inflicted on Plaintiff were caused by the negligence, carelessness and recklessness of the Defendants.

36. Upon information and belief, that at all times hereinafter mentioned, the conduct of Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER PIMENTEL, NEW YORK CITY POLICE OFFICER OLIVEIRA, NEW YORK CITY POLICE OFFICER CLARKE and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-5" true names being unknown at this time, its agents, servants and/or employees, was of such wanton, willful, egregious, reckless and intentional character as to manifest and evince a callous and reckless disregard for the safety and well-being of the Plaintiff who was caused to sustain the damages as herein described.

37. That as a result of the aforesaid, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

38. That as a result of the aforesaid, Plaintiff is entitled to an award of punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "38" inclusive of this Complaint, as if the same were set forth at length herein.

40. That the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER PIMENTEL, NEW YORK CITY POLICE OFFICER OLIVEIRA, NEW YORK CITY POLICE OFFICER CLARKE and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-5" true names being unknown at this time, its agents, servants and/or employees were negligent, careless and reckless in the hiring, training, retention, oversight and supervision of their agents, servants and/or employees including

Defendants, thereby resulting in the actions of the Defendants previously set forth.

41. That as a result of the aforesaid, the Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

AS AND FOR A FOURTH CAUSE OF ACTION

42. That the Plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "41" inclusive of this Complaint, as if the same were set forth at length herein.

43. That the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER PIMENTEL, NEW YORK CITY POLICE OFFICER OLIVEIRA, NEW YORK CITY POLICE OFFICER CLARKE and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-5" true names being unknown at this time, its agents, servants and/or employees at this time used excessive, unnecessary and unlawful force towards the Plaintiff.

44. The amount of force used by Defendants was objectively unreasonable and unconscionable.

45. As a result of the actions of Defendants, Plaintiff was placed in apprehension of imminent offensive bodily contact.

46. As a result of Defendants' actions and inactions, an offensive bodily contact occurred against Plaintiff, and Plaintiff sustained physical injuries.

47. The actions of Defendants in their course of employment were willful, intentional, unwarranted, and without just cause or provocation.

48. That this action falls within one or more of the exceptions set forth in CPLR §1602.

49. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

50. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

AS AND FOR A FIFTH CAUSE OF ACTION

51. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “50” inclusive of this Complaint, as if the same were set forth at length herein.

52. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, by and through their policy makers and their decision makers, acquired knowledge of the conduct of the individual Defendants toward the Plaintiff.

53. The aforesaid policy makers and decision makers of Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT approved the acts of its employees, including the acts of the individual Defendants herein.

54. The aforesaid policy makers and decision makers of Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT ratified the acts of its employees, including the acts of the individual Defendants herein.

55. The aforesaid policy makers and decision makers of Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT adopted the acts of its employees, including the acts of the individual Defendants herein.

56. All of the foregoing occurred as the result of the carelessness and negligence of the individual Defendants. In addition, Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT negligently and carelessly failed to adequately hire, train, retain, oversee, and supervise its employees, including the individual Defendants herein.

57. As the result of the foregoing, Plaintiff suffered from shock and personal injuries, damages and incurred legal fees.

58. The acts of the Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief pursuant to 42 U.S.C. § 1983.

59. The acts of the Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief pursuant to 42 U.S.C. § 1983.

60. The acts of the Defendants violated the rights granted to the plaintiff pursuant to Article I, § 12 of the New York State Constitution.

61. As such, plaintiff seeks relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

AS AND FOR A SIXTH CAUSE OF ACTION

62. That the Plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “61” inclusive of this Complaint, as if the same were set forth at length herein.

63. Upon information and belief, that at all times hereinafter mentioned, the conduct of Defendants, their agents, servants and/or employees, was of such wanton, willful, egregious, reckless and intentional character as to manifest and evince a callous and reckless disregard for

the safety and well-being of others, including Plaintiff, who was caused to sustain the damages as herein described.

64. That the Plaintiff was not negligent herein.

65. That this action falls within one or more of the exceptions set forth in CPLR § 1602.

66. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

67. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

68. That the Plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “67” inclusive of this Complaint, as if the same were set forth at length herein.

69. That the Defendants used excessive, unnecessary, and unlawful force during the incident.

70. The amount of force used by Defendants was objectively unreasonable and unconscionable.

71. As a result of the actions of Defendants, Plaintiff was placed in apprehension of imminent offensive bodily contact.

72. As a result of Defendants’ actions and inactions, an offensive bodily contact occurred against Plaintiff, and Plaintiff sustained physical injuries.

73. The actions of Defendants were willful, intentional, unwarranted, and without just cause or provocation.

74. Plaintiff was targeted by Defendants because of his race and the color of his skin, racially profiled, racially discriminated against, was subjected to great indignity, humiliation, pain and great distress of mind and body.

75. The actions of Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, Plaintiff seeks relief pursuant to 42 U.S.C. § 1983.

76. The actions of Defendants violated the rights granted to Plaintiff pursuant to Article I, § 12 of the New York State Constitution. As such, Plaintiff seeks relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

77. That this action falls within one or more of the exceptions set forth in CPLR § 1602.

78. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

79. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

AS AND FOR AN EIGHTH CAUSE OF ACTION

80. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “79” inclusive of this Complaint, as if the same were set forth at length herein.

81. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, by and through their policy makers and their decision makers, acquired knowledge of the conduct of the individual Defendants toward the Plaintiff.

82. The aforesaid policy makers and decision makers of Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT approved the acts of its employees, including the acts of the individual Defendants herein.

83. The aforesaid policy makers and decision makers of Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, ratified the acts of its employees, including the acts of the individual Defendants herein.

84. The aforesaid policy makers and decision makers of Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT adopted the acts of its employees, including the acts of the individual Defendants herein.

85. All of the foregoing occurred as the result of the carelessness and negligence of the individual Defendants.

86. In addition, Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, negligently and carelessly failed to adequately hire, train, retain, oversee, and supervise its employees, including the individual Defendants herein.

87. As a direct and proximate result of the foregoing, Plaintiff was subjected to scorn, ridicule, and embarrassment, suffered personal injuries and damages.

88. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

89. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

AS AND FOR THE NINTH CAUSE OF ACTION

90. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "89" inclusive of this Complaint, as if the same were set forth at length herein.

91. The acts of the individual Defendants constituted excessive use of force and physical, police brutality; they constitute and illustrate a conspiracy to do harm against a private citizen under color of law; the acts were attributable to inadequate training, hiring, retention, oversight and/or supervision amounting to deliberate indifference and gross negligence on the part of the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT; the acts and the omissions on the part of the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, in testing and accepting employees and in training and supervising them thereafter and in retaining them; they constitute gross negligence, willfulness and deliberate indifference on the part of the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, all in violation of the first, fourth, fifth, ninth and fourteenth amendments to the United States Constitution and 42 USC §1983.

92. This claim is made to recover damages for personal injuries sustained by the Plaintiff as a result of the excessive use of force and physical brutality of the individual Defendants.

93. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

94. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

AS AND FOR TENTH CAUSE OF ACTION

95. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "94" inclusive of this Complaint, as if the same were set forth at length herein.

96. By the aforementioned actions, Defendants discriminated against Plaintiff on the basis of race, color and/or ethnicity in violation of the NYC Human Rights Law § 8-107(1)(a), and in violation of the NYC Human Rights Law and New York State Human Rights Law and other anti-discrimination statutes.

97. By reason of Defendants' aforementioned acts, Plaintiff was targeted because of his race, color of his skin, racially profiled, racially discriminated against, was subjected to bodily injury, great indignity, humiliation, pain and great distress of mind and body, and was subjected to scorn and ridicule.

98. The aforesaid acts and conduct by Defendants and their agents and employees, were performed willfully, intentionally, maliciously and with reckless indifference to Plaintiff's protected civil rights.

99. As a result of Defendants' discriminatory treatment of Plaintiff, Plaintiff has sustained physical injuries and severe physical and emotional distress.

100. As a result of Defendants' discriminatory treatment of Plaintiff, Plaintiff has suffered damages, including, without limitation, bodily injuries, emotional pain, suffering, inconvenience, mental anguish, and humiliation.

101. The aforesaid occurrence and resulting injuries to Plaintiff were due solely to the recklessness, carelessness, and negligence of the Defendants.

102. The aforesaid occurrence took place through no fault or lack of care on the part of Plaintiff contributing thereto.

103. This claim is made to recover damages for personal injuries sustained by the Plaintiff as a result of the excessive use of force and physical brutality of the individual Defendants.

104. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

105. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR WRONGFUL
ARREST/FALSE IMPRISONMENT**

106. Plaintiff repeats and realleges each and every allegation set forth in paragraphs "1" through "105" above the same force and effect as if the same were more fully set forth at length herein.

107. On February 26, 2024, Plaintiff was falsely arrested, falsely imprisoned, wrongfully detained, unlawfully searched and seized and falsely charged.

108. Given that Plaintiff's arrest and imprisonment on February 26, 2024, arose without a warrant, legal justification, probable cause and/or reasonable suspicion, there is a legal

presumption that such arrest and imprisonment were unlawful.

109. Defendants intended to arrest and confine Plaintiff on February 26, 2024.

110. Plaintiff was conscious of his arrest and confinement on February 26, 2024.

111. Plaintiff did not consent to his arrest and confinement on February 26, 2024.

112. On March 17, 2024, Plaintiff appeared at the Bronx County Criminal Court and was advised by the clerk the charges against him were dismissed and proof establishing the absence of probable cause at the time of Plaintiff's arrest.

113. Defendants, their agents, servants and/or employees unlawfully obstructed, interfered with and deprived Plaintiff of his freedom of movement.

114. Defendants, their agents, servants and/or employees intended to, and did in fact, confine and restrain Plaintiff against his will which confinement and restraint unlawfully obstructed, interfered with and deprived Plaintiff of his freedom of movement.

115. Plaintiff was at all times conscious of his unlawful confinement and restraint which wrongfully obstructed, interfered with and deprived Plaintiff of his freedom of movement.

116. At no time did Plaintiff willingly consent to his unlawful confinement and restraint which wrongfully obstructed, interfered and deprived Plaintiff of his freedom of movement.

117. Defendants' unlawful confinement and restraint of Plaintiff, which wrongfully obstructed, interfered with and deprived Plaintiff of his freedom of movement, was not otherwise privileged.

118. As a direct and proximate result of Defendants' unlawful confinement and restraint of Plaintiff, which wrongfully obstructed, interfered and deprived Plaintiff of his

freedom of movement, Plaintiff suffered damages.

119. That as a result of false arrest and wrongful imprisonment, Plaintiff sustained loss of liberty, damage to reputation, loss of employments, loss of earnings, and psychological injuries including mental anguish, indignity, public humiliation, embarrassment and emotional distress.

120. Plaintiff was not contributorily negligent herein.

121. That this action falls within one or more of the exceptions set forth in CPLR §1600 et seq.

122. That as a result of the aforesaid, the Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

123. Plaintiff is also entitled to an award of punitive damages as a result of Defendants wanton and grossly reckless conduct.

AS AND FOR A TWELFTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

124. Plaintiff repeats and realleges each and every allegation set forth in paragraphs “1” through “114” above with the same force and effect as if the same were more fully set forth at length herein.

125. Defendants commenced a criminal proceeding against Plaintiff, which criminal proceeding was terminated in favor of Plaintiff.

126. The commencement of the criminal proceeding by Defendants against Plaintiff was done with actual malice given that the criminal proceeding was dismissed by the criminal court as against Plaintiff as there was no probable cause for the initiation of the criminal proceeding as against Plaintiff.

127. Actual malice can be inferred by the absence of probable cause to effectuate Plaintiff's arrest and by Defendants' subsequent conduct in continuing the prosecution of the criminal matter as against Plaintiff despite the facts alleged above.

128. As a direct and proximate result of the aforesaid conduct on the part of Defendants, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

129. Plaintiff is also entitled to an award of punitive damages as a result of Defendants' wanton and grossly reckless conduct.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION: DEPRIVATION OF RIGHTS
UNDER THE FOURTH AND FOURTEENTH AMENDMENTS AND 42 USC §1983**

130. Plaintiff repeats and reallege each and every allegation set forth in paragraphs "1" through "129" above with the same force and effect as if more fully set forth at length herein.

131. The conduct and actions of Defendants acting in concert and under color of state law, in engaging in, authorizing or directing the aforementioned actions and conduct, was excessive and unreasonable, was done intentionally, willfully, maliciously, with deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to and did cause specific and serious emotional pain and suffering in violation of Plaintiff's rights as guaranteed under 42 USC §1983, and the Fourth Amendment and Fourteenth Amendments to the United States Constitution, including the right to be free from an unreasonable seizure of his person and the right to be free from the use of excessive, unreasonable and unjustified force.

132. By their conduct, as described above, and acting under color of state law to deprive Plaintiff of his rights to be free from unreasonable seizure and arrest without reasonable suspicion or probable cause as required by the Fourth and Fourteenth Amendments, Defendants are liable for violation of 42 U.S.C. §1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

133. As a direct and proximate result of the foregoing, Plaintiff was subjected to great emotional pain and humiliation, was deprived of his liberty, and was otherwise damaged and injured.

134. As a direct and proximate result of the aforesaid conduct on the part of Defendants, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A THIRTEENETH CAUSE OF ACTION
FOR ATTORNEYS FEES PURSUANT TO 42 U.S.C. SECTION 1988**

135. Plaintiff repeats and reallege each and every allegation set forth in paragraphs “1” through “134” above as if the same were more fully set forth at length below.

136. As a result of Defendants’ violation of the 42 USC 1983, the Defendants are liable for Plaintiffs’ reasonable attorneys’ fees pursuant to the Civil Rights Attorneys Fees Awards Act of 1976 – 42 U.S.C. section 1988.

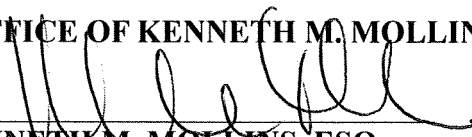
137. That as a result of the aforesaid, Plaintiff, KHARI SCARBOROUGH, has been damaged in an amount to be determined by a trier of fact at a Trial of the issues set forth herein.

WHEREFORE, Plaintiff demands Judgment against the Defendants, in all the causes of action in an amount to be determined by a trier of fact at a trial, and punitive damages in an

amount to be determined at trial of the issues set forth herein, together with the interest, costs and disbursements of this action. The amount prayed for herein exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

Dated: Hauppauge, New York
August 27, 2024

LAW OFFICE OF KENNETH M. MOLLINS, P.C.



By: KENNETH M. MOLLINS, ESQ.

Attorneys for Plaintiff

KHARI SCARBOROUGH

1393 Veterans Memorial Highway

Suite 101S

Hauppauge, New York 11788

(631) 608-4100

File Number: 20240302

VERIFICATION

STATE OF NEW YORK)
 ss:
COUNTY OF SUFFOLK)

I, KHARI SCARBOROUGH being duly sworn, deposes and says:

I am the Plaintiff in the within action.

I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof,
the same is true to my own knowledge, except as to those matters therein alleged to be on
information and belief, and as to those matters I believe it to be true.

Khari Scarborough
KHARI SCARBOROUGH

Sworn to before me this
27th day of August 2024

[Signature]

